TELEPHONE MINUTES

1 The Representative was contacted by the primary Examiner in order to discuss the last set of amendments, with the letter dated 01.01.2013. The following issues were discussed:

1.1 Claim 1 still contains a number of unclear features; first the preamble indicates that the enzyme has **an** artificially introduced mutation while later in the claim, reference is made to **one or more** mutations. In addition, the functional definition "wherein the restriction endonuclease is capable of cleaving a substrate with at least a **similar** cleavage activity to that of the restriction endonuclease absent the artificially introduced mutation, in a **predetermined buffer**" is also unclear since the skilled person does not know exactly which activity is meant and how similar should be interpreted. Even following the definitions in the description, this would not allow a skilled person to determine the essential features of the invention. Thus, claim 1 contravenes Art. 84 EPC.

1.2 Possible ways to overcome this objections were discussed; it appears that a restriction endonuclease enzyme having an artificially introduced mutation, wherein the restriction endonuclease absent the artificially introduced mutation is SphI and wherein the artificially introduced mutation corresponds to D91A, D139A, D164A, or K100A in SEQ ID No.98, would be considered clear and, since the structural features are well defined, the functional features would be inherent to the mutated enzyme.

2 Since it appears that following these amendments the application could further proceed to grant, the applicant was invited to submit claims as agreed and to adapt the description to the agreed claims.

2.1 Especial care should be taken to remove any reference to embodiments which have been deleted form the claims. This is of particular importance in order to avoid inconsistencies and for compliance with Art. 84 EPC (see Guidelines F-IV, 4.3).

2.2 In the present case, where **unity of invention was missing** (Art. 82 EPC), the subject-matter corresponding to the other inventions, or at least any reference that these represent embodiments of the present invention, should be removed form the description.

2.3 The applicant should also identify in the description the relevant **documents cited** during the examination procedure, D1-D3, D5-D8, and the relevant background art disclosed therein should be briefly discussed (Rule 42(1)(b) EPC).

2.4 Finally, in order to avoid amendments by the Examining Division in the communication according to Rule 71(3) EPC, the applicant is requested to carefully check that minor spelling and typographic errors in the documents are corrected.

2.5 The applicant is invited to provide the **basis** for the amendments (Art. 123(2), Rule 137(4) EPC) and to provide **clean typed copies of any amended pages** in order to avoid later requests to provide such copies. The Rules and Guidelines concerning amendments (e.g. for readability, margins, E-II; A-V, 2) should also be respected.

3 No further amendments may be made without the consent of the Examining Division (Rule 137(3) EPC).

4 A time limit to submit these amendments was agreed with the applicant.